

56	Lehman vs. All Known and Unknown Claimants to 17121 Palmdale Lane, Huntington Beach, California 92647, Including the Estate of Leif Gylstrand, Successor Trustees, Heirs 25-01533470	Motion to Quash Service of Summons The motion of specially appearing defendant Melissa Gylstrand for an order quashing service of the summons and complaint is off-calendar as MOOT. Plaintiff Travis Lehman dismissed this specially appearing defendant from the action without prejudice on May 18, 2026.
57	La Paz Village Investors, LLC vs. Orange County Realtors, Inc. 26-01538551	Motion for Preliminary Injunction & Motion for Temporary Restraining Order Plaintiff/Cross-Defendant La Paz Village Investors, LLC (“LPVI”)’s Motion for Preliminary Injunction (ROA 22) is GRANTED in part. Defendant/Cross-Complainant Orange County Realtors (“OCR”) Application for Preliminary Injunction (ROA 44) is also GRANTED in part. <i>The Motions:</i> LPVI seeks a preliminary injunction ordering OCR and all of its agents, contractors, representatives, employees and all persons acting in concert with it to (1) prevent OCR from further altering the status quo as it existed when this lawsuit was filed, (2) prevent OCR from engaging in any construction, on or within the boundaries LPVI’s property located at 25250, 25252, 25254, and 25758 La Paz Road, Laguna Hills, California (APNs 620-211-09, 620-211-15, 620-211-17 and 620-211-18, respectively) (collectively, the “LPVI Property”), (3) prevent OCR from further violating, interfering, or obstructing LPVI’s easement for ingress and egress over OCR’s property at 25552 La Paz Road, Laguna Hills, California (APN 620-211-19), (4) prevent OCR from further depriving LPVI of the benefits of prevailing in this action, and (5) require OCR to immediately remove all encroachments, improvements, construction materials, fencing, and other physical intrusions that OCR has placed or caused to be placed on the LPVI Property and within the LPVI Easement, and to restore the affected areas to pre-encroachment condition. OCR moves for a preliminary injunction ordering LPVI and Nicholas Buchanan not to interfere with OCR’s efforts to remove construction debris and allegedly vandalized wall bracing, fill and remediate an open trench, repair damaged asphalt, and otherwise remediate the disputed construction area to address what OCR contends is an ongoing public safety hazard. OCR also seeks permission to complete the remediation work while providing indemnity and additional insured protections to LPVI during the work. <i>The Legal Standard Applicable to Injunctive Relief:</i> “The general purpose of a preliminary injunction is to preserve the status quo pending a determination on the merits of the action. [Citation.] ‘ “The granting or

		denial of a preliminary injunction does not amount to an adjudication of the ultimate rights in controversy. It merely determines that the court, balancing the respective equities of the parties, concludes that, pending a trial on the merits, the defendant should or ... should not be restrained from exercising the right claimed by him.” ’ [Citation.]” (<i>SB Liberty, LLC v. Isla Verde Assn., Inc.</i> (2013) 217 Cal.App.4th 272, 280.) The trial court weighs two interrelated factors in determining whether to issue a preliminary injunction: “[T]he likelihood the moving party ultimately will prevail on the merits, and the relative interim harm to the parties from the issuance or nonissuance of the injunction.” (<i>Hunt v. Superior Court</i> (1999) 21 Cal.4th 984, 999.) In an action between adjoining landowners based on the defendant constructing an improvement on the plaintiff’s property, the plaintiff is generally entitled to a mandatory injunction requiring the defendant to remove the encroachment. (See <i>Nellie Gail Ranch Owners Assn. v. McMullin</i> (2016) 4 Cal.App.5th 982, 1003.) <i>LPVI’s Complaint:</i> The Complaint asserts cause of action for trespass, trespass to easement, nuisance and declaratory relief. An action for trespassing protects the possessor’s interest in exclusive possession of the land and is based on unlawful interference with that possession. Mere intentional entry upon land, without more, may constitute a trespass. (<i>Donahue Schriber Realty Group, Inc. v. Nu Creation Outreach</i> (2014) 232 Cal.App.4th 1171, 1177-1178 [essence of trespass claim is unauthorized entry onto land of another].) The elements of a trespass claim are: “(1) the plaintiff’s ownership or control of the property; (2) the defendant’s intentional, reckless, or negligent entry onto the property; (3) lack of permission for the entry or acts in excess of permission; (4) harm; and (5) the defendant’s conduct was a substantial factor in causing the harm.” (<i>Ralphs Grocery Co. v. Victory Consultants, Inc.</i> (2017) 17 Cal.App.5th 245, 262.) “A trespass is an invasion of the interest in the exclusive possession of land, as by entry upon it . . . A nuisance is an interference with the interest in the private use and enjoyment of the land and does not require interference with the possession.” (<i>Rancho Viejo, LLC v. Tres Amigos Viejos, LLC</i> (2002) 100 Cal.App.4th 550, 562.) <i>LPVI’s Evidence in Support of its Motion:</i> Initially, the Court notes that LPVI objected to the Declaration of Elisabeth Barndt (ROAs 132 and 136) as well as the Declaration of Dave Stefanides (ROA 131). The objections are OVERRULED. Although certain portions of the challenged material may be inadmissible on one or more of the asserted grounds, the objections are directed to entire paragraphs rather than to the specific objectionable material. “It is settled law that where evidence is in part admissible, and in part inadmissible, the objectionable portion cannot be reached by a general objection to the entire [evidence], but the inadmissible portion must be specified.” (<i>People v. Harris</i> (1978) 85 Cal.App.3d 954, 957; see also <i>Walls v. Macy’s</i> (1964) 226 Cal.App.2d 29, 30.) LPVI owns four contiguous commercial parcels located at 25250, 25252, 25254, and 25758 La Paz Road in the City of Laguna Hills, Orange County, California
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		(APNs 620-211-09, 620-211- 15, 620-211-17, and 620-211-18, respectively) (collectively, the “LPVI Property”). (Declaration of Nick Buchanan [“Buchanan Decl.”], ¶¶ 2, 3.) OCR owns the parcel immediately to the west of the LPVI Property at 25552 La Paz Road, Laguna Hills (APN 620-211-19) (“OCR Property”), where OCR’s headquarters is located. (Buchanan Decl., ¶ 5.) The OCR Property is bounded by La Paz Road to the north and MacKenzie Street to the west. (Declaration of Dane McDougall [“McDougall Decl.”], ¶ 5.) The LPVI Property and OCR Property parcels (collectively the “Parties’ Properties”) are encumbered by mutual, recorded ingress/egress easements that have governed access between the Parties’ Properties for many years. (Buchanan Decl., ¶ 6.) Specifically, LPVI holds an ingress/egress easement over the OCR Property for the benefit of the LPVI Property (the “LPVI Easement”). The LPVI Easement allows vehicular access from parking lot drive aisles on the LPVI property onto and across the OCR Property. Without this easement, vehicles cannot exit the parking lot drive aisles on the LPVI Property or circulate through the parking lot. (McDougall Decl., ¶¶ 6, 7.) OCR holds discrete access easements for ingress/egress over the LPVI Property for the benefit of the OCR Property (the “OCR Easements”), which run across three parking lot drive lanes on Parcel Four of the LPVI Property (APN 620-211-17). (Buchanan Decl., ¶ 6.) When LPVI initially purchased the LPVI Property in spring 2022, it did so with the express purpose of developing a portion of the shopping center as a new senior residential development (Buchanan Decl. ¶ 2.) On September 23, 2025, the City of Laguna Hills City Council approved entitlements for LPVI’s 180-unit senior housing project (the “Senior Housing Project”). (Id. at ¶ 3.) Throughout the entitlement process, LPVI and OCR initially maintained a constructive working relationship. (Buchanan Decl., ¶ 8.) Beginning in July 2025, LPVI was actively seeking to execute agreements relating to the previously discussed proposals of relocating the OCR Easements, which lie within the footprint of the Senior Housing Project, to other feasible locations on the LPVI Property, so that the Senior Housing Project could proceed while maintaining access to the OCR Property. (Id. at ¶ 9.) By October 2025, OCR abandoned collaborative discussions and instead demanded concessions from LPVI, including the demolition of an existing tenant building, to improve OCR’s own access—a demand that bore no relationship to any easement right OCR possessed. (Id. at ¶ 10.) On or about October 8, 2025, LPVI’s manager Buchanan made a site visit to the LPVI Property and discovered that OCR had undertaken, without notice, permission, or license, extensive and invasive construction activities directly on the LPVI Property. (Buchanan Decl., ¶ 11.) The unauthorized activities included the installation of concrete formwork on the LPVI Property excavation of a large portion of LPVI’s driveway at La Paz Road, staging of construction vehicles and equipment on the LPVI Property and placement of construction fencing on the LPVI Property, erected in a manner that completely blocked access to the LPVI Easement, preventing vehicles from using the easement for circulation through the shopping center parking lot. (Ibid.) On or about October 9, 2025, the City posted a “Stop Work Order” on OCR’s construction, citing the impermissible trespass on the LPVI Property. (Buchanan Decl., ¶ 11.)
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		LPVI repeatedly attempted to resolve OCR’s unlawful encroachments without court intervention. (Buchanan Decl. ¶¶ 13-15, Exhs. 3-4.) In February 2026, LPVI retained Dane McDougall, a licensed civil engineer and land surveyor, to conduct a field investigation of the property boundary and easement location. (McDougall Decl., ¶¶ 2-3, 8.) On February 18, 2026, McDougall performed a thorough field investigation utilizing standard and accepted civil engineering and surveying practices, including recovery of boundary monuments, measurement of record bearings and distances, and verification of occupation lines. He also took drone footage over both properties to document the construction activities. (Id. at ¶¶ 6, 8-10.) His investigation included review of recorded grant deeds, tract/parcel maps, assessor's parcel maps, and construction drawings obtained from the City of Laguna Hills through a Public Records Act request. (Id. at ¶ 9.) McDougall's professional opinions, stated to a reasonable degree of engineering certainty, are as follows: • The true and correct boundary between the LPVI Property and the OCR Property is as depicted on Exhibit 2 to his Declaration. (Id. at ¶ 13.) • The LPVI Easements are accurately depicted on Exhibit B. (Id. at ¶ 13.) • OCR's construction improvements, specifically a parking island and parking spaces, encroach on the LPVI Easements to a degree that would materially impede, if not render impossible, the use of those easements for ingress and egress. (Id. at ¶ 14.) • OCR's improvements extend across the true boundary and encroach upon the LPVI Property, including wooden formwork and chain link fencing, asphalt removal and “sawcutting” away existing pavement, and construction materials that are stored in the LPVI Property, such as palletized concrete pavers. (Id. at ¶ 15.) • Construction activity was ongoing within the encroachment area as of February 18, 2026. (Id.) On February 18, 2026, the same day McDougall conducted his field investigation, Buchanan made another site visit to the LPVI Property and discovered that OCR's construction fencing had blown over onto the LPVI Property as a result of a storm. (Buchanan Decl., ¶ 17.) More critically, Buchanan discovered that OCR had resumed active construction and was in the process of constructing permanent obstructions over the LPVI Easement that would preclude access at the north end of that easement. (Id. at ¶¶ 17-18.) The resumption of construction activities poses an existential threat to the operations at the LPVI Property and to LPVI's ability to secure construction financing for the approved Senior Housing Project. (Id. at ¶ 18.) As recently as March 9, 2026, 7-Eleven provided notice to LPVI of early closure of its lease at the LPVI property. (Id. at ¶ 21, Ex. 5.) This was unexpected, as in September 2025, prior to OCR’s trespasses, LPVI and 7-Eleven had been in discussion to extend the 7-Eleven lease at the LPVI Property, even reaching an agreement in principle to extend the lease for another ten years, with an escalating rent schedule. (Id. at ¶ 22.) OCR’s encroachment on the LPVI Easement and its construction has particularly impacted 7-Eleven and its customer’s ability to access the parking lot. (Id.)
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OCR's Opposition:

OCR opposes the motion contending the dispute is not really about trespass or easement obstruction, but rather LPVI's attempt to pressure OCR into relinquishing longstanding easement rights needed to access OCR's property so LPVI can proceed with its proposed residential development.

OCR contends Buchanan initially consented to the temporary encroachments associated with OCR's remodeling project and only objected after OCR refused to surrender or relocate its easements. (Declaration of Elisabeth Barndt ["Barndt Decl.,"] ¶¶ 10, 16, 24.) OCR further argues the alleged encroachments were temporary, traffic circulation was never materially impaired, and no ongoing construction remains. (Barndt Decl., ¶¶ 15, 17-20, 23, 26.)

According to OCR, the only remaining issue is remediation of the trench and wall area, which OCR has repeatedly offered to complete at its own expense while providing indemnity and insurance protections. (Barndt Decl., ¶¶ 7, 8, 22, 26.) OCR therefore contends that LPVI cannot establish irreparable harm and that the only injunctive relief warranted is an order permitting OCR to enter the property to complete remediation and restoration work. (Barndt Decl., ¶ 26.)

Ruling on LPVI's and OCR's Motions:

LPVI has demonstrated a reasonable likelihood of prevailing on its trespass and nuisance claims.

Under California law, a property owner is generally entitled to injunctive relief requiring removal of encroachments, and the balancing of hardships doctrine applies only in limited circumstances, particularly where the encroacher acted innocently. (See *Nellie Gail Ranch Owners Assn. v. McMullin*, *supra*, 4 Cal.App.5th at pp. 1003-1005.)

Here, LPVI has presented evidence that OCR conducted construction activities within LPVI's property and easement areas notwithstanding LPVI's objections and a city-issued stop work order. (Buchanan Decl., ¶ 11; McDougall Decl., ¶¶ 13-15.)

OCR disputes the extent of the alleged encroachments and contends certain temporary intrusions associated with its remodeling project were known to and consented to by Buchanan. (Barndt Decl., ¶¶ 10, 16, 24.) However, Buchanan, in his supplemental declaration, disputes OCR's assertion that any consent was given and states the construction activities appeared without prior notice, permission, license, or indemnity agreement. (Supplemental Declaration of Nick Buchanan, ¶¶ 6-7.)

Based on the above, the Court finds that LPVI has made a sufficient showing on its trespass and nuisance claims to warrant interim injunctive relief preserving the status quo.

LPVI has also demonstrated relative interim harm if injunctive relief is not granted, including alleged interference with shopping center operations, tenant relations, refinancing efforts, and the approved senior housing project. (Buchanan Decl., ¶¶ 18-22.)

		However, OCR in support of its opposition to LPVI’s motion and its own motion for injunctive relief, submits evidence that active construction has ceased, traffic circulation has been restored, and the remaining dispute primarily concerns remediation of the trench and wall area. (Barndt Decl., ¶¶ 17-23, 26.) OCR also submits evidence that the existing trench, wall bracing, debris, and damaged asphalt conditions present ongoing safety and liability concerns requiring prompt remediation. (Barndt Decl., ¶¶ 7, 8, 22, 26.) OCR represents it repeatedly offered to remediate the area at its own expense while providing indemnity and insurance protection, but the parties were unable to reach agreement concerning access and remediation. (Barndt Decl., ¶¶ 7, 8, 22, 26.) Thus, OCR’s requested relief substantially overlaps with the relief LPVI seeks. Balancing the parties’ competing interests, it appears the equities favor preserving the status quo pending adjudication of the parties’ property and easement rights by prohibiting further construction, expansion of improvements, or additional encroachments within the subject area. However, the evidence reflects that the current trench, wall bracing, debris, and damaged asphalt conditions present ongoing safety and liability concerns warranting prompt remediation. Under these circumstances, allowing OCR limited access for remediation and restoration work appears appropriate, subject to reasonable conditions regarding the scope of work, timing, insurance, and indemnity protections. To this end, the parties are ordered to meet and confer about the parameters, scope, timing, contractor access, insurance requirements, and indemnity provisions applicable to the remediation and restoration work. The parties shall file a joint proposed order consistent with this ruling no later than June 22, 2026. If the parties are unable to reach an agreement, the parties shall file a Notice stating that they were unable to file a joint proposed order. Upon receipt of this Notice, the Court will set an Order to Show Cause as to why the Court should not appoint a referee, pursuant to CCP § 639, for the purpose of determining facts relevant to the remediation and restoration work that shall be completed as quickly and efficiently as possible as set forth in this ruling. As the Court’s tentative ruling is to grant both parties request for preliminary injunctive relief, the proposed order must also address the bond requirement. When a preliminary injunction is granted, the court must require an undertaking (Code Civ. Proc., § 529), or allow a cash deposit in lieu thereof (Code Civ. Proc., § 995.710). (<i>Stevenson v. City of Sacramento</i> (2020) 55 Cal.App.5th 545, 555— requirement of filing an undertaking is the “default rule.”) Because the bond requirement is mandatory, defendant’s failure to request a bond does not waive the requirement. (<i>ABBA Rubber Co. v. Seaquist</i> (1991) 235 Cal.App.3d 1, 10.) But the bond requirement may be waived or forfeited by the party to be enjoined: “Anyone may waive the advantage of a law intended solely for their benefit.” (Civ.C. § 3513; see <i>Smith v. Adventist Health System/West</i> (2010) 182 Cal.App.4th 729, 740—implied waiver or forfeiture found where defendant (party to be enjoined) consciously chose not to address bond requirement at preliminary injunction hearing, as part of a tactical decision to focus on arguments that would result in preliminary injunction being denied.) The Clerk is instructed to give notice.
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61	Santos vs. Ford Motor Company 23-01343403	Motion for Summary Judgment and/or Adjudication Defendant Ford Motor Company’s (“Ford”) motion for summary judgment is GRANTED. “Summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Civil Proc. Code, § 437c, subd. (c).) “A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, . . . or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. (Civil Proc. Code, § 437c, subd. (f)(1).) A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (<i>Id.</i> at 851.) A defendant moving for summary judgment satisfies the initial burden by submitting undisputed evidence “showing that a cause of action has no merit [because] one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Civil Proc. Code § 437c, subd. (p)(2); <i>Aguilar v. Atlantic Richfield Co.</i>, <i>supra</i>, 25 Cal.4th at pp. 850-51.) However, “[t]he defendant must indeed present evidence.” (<i>Aguilar v. Atlantic Richfield Co.</i>, <i>supra</i>, 25 Cal.4th at p. 855, italics original.) If a defendant fails to meet this initial burden, the plaintiff need not oppose the motion and the motion must be denied. (<i>Binder v. Aetna Life Ins. Co.</i> (1999) 75 Cal.App.4th 832, 840.) If the moving party meets its burden, the burden then shifts to the party opposing summary judgment to show, by reference to specific facts, the existence of a triable, material issue as to a cause of action or an affirmative defense. (<i>Aguilar v. Atlantic Richfield Co.</i>, <i>supra</i>, 25 Cal.4th at p. 855; <i>Villacres v. ABM Industries, Inc.</i> (2010) 189 Cal.App.4th 562, 575.) On July 1, 2022, the lease for the Subject Vehicle, a 2020 Ford Explorer, VIN No.: 1FM5K8GC5LGB11813, was transferred from the original lessee, Michael D. Hadley, to Plaintiff Adam S. Santos with the consent of Ford Motor Credit Company. (Biemann Decl. ¶ 4, Exh. 3 [ROA 128]; Plaintiffs Additional Facts No. 1 [and evidence cited therein].) Plaintiffs purchased the vehicle out of the lease agreement on December 16, 2022. (Ford Separate Statement No. 2 [and evidence cited therein].) The Subject Vehicle had approximately 21,152 miles at the time of Plaintiffs’ purchase. (<i>Id.</i>) In the Complaint, Plaintiffs allege they entered into a warranty contract with Defendant Ford Motor Company (“Ford”) for a 2020 Ford Explorer. (Compl. ¶ 9.) The warranty contract contained various warranties, including but not limited to the bumper-bumper warranty, powertrain warranty, emission warranty, etc. (<i>Id.</i> at ¶ 10, Exh. A.)
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